



Danaher (Leica Biosystems) – StatLab

MN-15031

Phase 1 Determination

Acquisition may be put into effect

9 September 2026

1. Determination and statement of reasons

Notified acquisition	Danaher Corporation (Danaher) proposes to acquire StatLab Medical Products (StatLab) through a Stock Purchase Agreement with SLMP Intermediate Holdings, Inc and StatLab (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Danaher, is a global science and technology company that designs, manufactures and markets professional, medical, industrial and commercial products and services under three core segments: biotechnology, life sciences and diagnostics. Danaher, through its subsidiary Leica Biosystems, supplies anatomical pathology equipment, consumables and workflow solutions, including core histology instruments and consumables. The target, StatLab, manufactures, distributes and services pre-analytical and staining consumables and instruments that support the anatomical pathology workflow. StatLab primarily supplies core histology consumables but also supplies core histology instruments.
Overlap and relationship between the Parties	Danaher, through Leica Biosystems, and StatLab overlap in the manufacture and supply of core histology instruments and consumables. Leica Biosystems also sources certain core histology consumables from StatLab.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The increases in market shares resulting from the Acquisition in both core histology instruments and core histology consumables are estimated to be low. • The merged firm would continue to face competition from multiple alternative suppliers of core histology instruments and core histology consumables. • For the reasons above, the merged firm would be unlikely to

	have the ability and incentive to foreclose its rivals in the supply of core histology instruments and/or core histology consumables.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**